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# NCA Statement on California Bill to Ban Certain Food Ingredients

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WASHINGTON, March 25 (TNStalk) -- The National Confectioners Association issued the following statement and letter on March 23, 2023:

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In response to the recent introduction of California AB 418 that would ban the manufacture, sale or distribution of food products containing certain ingredients, the National Confectioners Association issued the following statement.

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"Chocolate and candy are safe to enjoy, as they have been for centuries. We strongly oppose AB 418 because there is no evidence to support banning the ingredients listed in the bill.

"The ingredients that would be banned under this proposal have all been approved by the U.S. Food and Drug Administration.

"Food safety is the number one priority for U.S. confectionery companies, and we do not use any ingredients in our products that do not comply with the FDA's strictest safety standards."

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February 27, 2023

To: The Honorable Jesse Gabriel, Bill Sponsor, State Capitol, 1021 O Street, Sacramento, CA 95814

The Honorable Buffy Wicks, Bill Sponsor, State Capitol, 1021 O Street, Sacramento, CA 95814

Re: Opposition to AB 418

Dear Representatives Gabriel and Wicks,

On behalf of the National Confectioners Association (NCA), I am writing to express our opposition to AB 418, which would prohibit an entity from manufacturing, selling, delivering, distributing, holding, or offering for sale, a food product that contains specified substances -- brominated vegetable oil, potassium bromate, propylparaben, Red dye 3, and titanium dioxide.

As the makers of chocolate, candy, gum and mints, the confectionery industry plays an important role in the economy. We create good-paying jobs in the manufacturing sector and support thousands of additional American jobs throughout the economy. In California, the confectionary industry represents a $7.7 billion economic output, pays $1.8 billion in wages, and supports 106,351 total jobs in the state.

We strongly oppose this bill because we believe it is misguided. Under the Federal Food, Drug, and Cosmetic Act food additives are generally subject to Food and Drug Administration (FDA) approval before they may be used in food and beverages. The substances that would be prohibited by AB 418 have all been approved by FDA. When evaluating the safety of a food additive, like brominated vegetable oil, or a color additive for approval, FDA considers:

1) The composition and properties of the substance 2) The amount that would typically be consumed 3) Immediate and long-term health effects, 4) Various safety factors

The evaluation determines an appropriate level of use that includes a built-in safety margin - a factor that allows for uncertainty about the levels of consumption that are expected to be harmless. Based on the evaluation, FDA will issue a regulation that may include limitations, e.g., the types of foods in which it can be used, the maximum amounts to be used, and how it should be identified on food labels to ensure safe use. In addition to approval, certain artificial color additives are required to undergo batch certification, a process in which the FDA analyzes a representative sample of each batch of the color additive to ensure it meets the required identity and specifications before it can be used. FDA's Good Manufacturing Practices (GMP) require, in relevant part, manufactures to limit the amount of food ingredients used in foods to be complaint with food additive limitations, or if no limitations, to the amount necessary to achieve the desired effect.

Under the approval and certification requirements FDA has concluded that numerous food additives and food colors are safe for consumption. If new evidence suggests that an approved additive already in use may be unsafe, or if consumption levels have changed affecting safe use, FDA may prohibit its use or conduct further studies to determine if the use can still be considered safe. For example, FDA and the Office of Environmental Health Hazard Assessment (OEHHA) have examined the intake of synthetic colors and hyperactivity in children, but have not found a causal linkage. FDA's position is that "[t]he totality of scientific evidence indicates that most children have no adverse effects when consuming foods containing color additives, but some evidence suggests that certain children may be sensitive to them" and ultimately "[c]olor additives are safe when they are used in accordance with FDA regulations."/1 Notably, FDA is also committed to continually evaluate the "results of any new research on [approved additives'] safety to ensure its use continues to be within safe limits."/2

Members of the National Confectioners Association would not use any ingredients in their product that do not currently comply with FDA standards, and therefore we stand in strong opposition of AB 418 because there is no evidence to support banning the listed ingredients in the bill.

Sincerely,

Brian M. McKeon, Senior Vice President, Public Policy National Confectioners Association

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Footnote:

1/ FDA, Color Additives Questions and Answers for Consumers

2/ FDA, Overview of Food Ingredients, Additives & Colors

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March 13, 2023

To: The Honorable Jim Wood, Chair, Assembly Committee on Health, 1020 N Street, Room 390, Sacramento, California 95814

RE: AB 418 (Gabriel) Food product safety. (OPPOSE)

Dear Chairman Wood:

On behalf of the organizations listed below that represent manufacturers, distributors, and retailers of food and beverages, we write to OPPOSE AB 418 (Gabriel), "Food Product Safety," which seeks to ban the manufacturing and

sales of food containing five specific food additives. Food safety is a paramount concern to us and our members; however, this measure usurps the comprehensive food safety and approval system for these five additives and predetermines ongoing evaluations.

The United States Federal Government has a comprehensive food safety process that reviews food additives. In addition, California has several laws that require removing chemicals from foods, attaching warning labels, and checking alternatives if those food additives are unsafe or expose consumers to allergies. All five of these additives have been thoroughly reviewed by the federal and state systems and many international scientific bodies and continue to be deemed safe.

The food safety process is active and should be allowed to continue the appropriate review of these five and all additives. Several substances this bill proposes to ban are subject to petitions to these government entities initiated by many organizations supporting this measure. Scientific regulators work through these processes and make determinations to establish recognized safe thresholds. Then, when appropriate and supported by peer-reviewed scientific evaluations, they require additional labels or removal from the market. Additionally, our comprehensive system requires ingredient labeling allowing consumers to make informed decisions.

Examples of the comprehensive food safety system and regulatory actions to determine the safety of additives in this bill include:

* Under the Federal Food, Drug, and Cosmetic Act, advocates petitioned for the removal of red dye #3 in November of 2022. The petition is currently open for comment until April of 2023.

* California's Department of Public Health (CDPH) has a process for the public to petition for safety remedies. In 2022, the Center for Science in the Public Interest petitioned CDPH to require a warning label on foods containing synthetic dyes. A hearing is scheduled for April 11, 2023.

* The Safe Drinking Water and Toxic Enforcement Act of 1986, commonly known as Prop 65, regulates many chemicals, some of which are in food either occurring naturally or through an additive. The act uses rigorous scientific review and predetermined safety factors to establish "No Significant Risk Levels (NSRLs)" and "Maximum Allowable Dose Levels (MADLs)." The proponents state that one of the additives is on this list as justification for being banned. However, California analyzes all listed materials and their exposure methods and establishes safety thresholds.

The current regulatory environment provides significant scientific oversight where qualified regulators review hazards and risks. These regulatory bodies with scientific professionals have responsibility over all food additives, and these scientifically based regulatory processes should be allowed to continue without second guessing their outcomes.

This coalition supports initiatives to promote food safety and actively engages in the regulatory processes to ensure a safe and wholesome food supply. As a result, the federal government and the state of California have developed one of the world's most robust and protective systems for food safety. In short, we encourage the Legislature to allow that system to do this critical work. Therefore, this coalition respectfully OPPOSE AB 418 and urges the committee to hold the bill.

Sincerely,

Brendan Flanagan, Sr. Director of State Government Affairs, Consumer Brands Associati

Tim Shestek, Senior Director, State Affairs, American Chemistry Council

Sarah Codrea, Executive Director, IACM - International Association of Color

Manufacturers Brian M. McKeon, Senior Vice President, National Confectioners Association

Robert Spiegel, Senior Policy Director, California Manufacturer

Leticia Garcia, Director, State Government Relations, California Grocers Association

Trudi Hughes, President and CEO, California League of Food Producers

Steve Mister, President and CEO, Council for Responsible Nutrition

Rasma Zvaners, Vice President, Regulatory & Technical Services, American Bakers Association

Lisa Johnson, Executive Director, Chemical Industry Council of California (CICC)

Adam Regele, Vice President of Advocacy & Strategic Partnerships, California Chamber of Commerce

cc: The Honorable Jesse Gabriel

Member, Assembly Committee on Health

Rosielyn Pulmano, Chief Consultant, Assembly Committee on Health

Gino Folchi, Republican Consultant, Assembly Committee on Health

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Original text here: https://candyusa.com/news/nca-statement-on-california-bill-ab-418-to-ban-certain-food-ingredients/

[Category: Food/Beverage]

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